CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. EC443AF71
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
CONFIDENTIAL - SUBJECT TO PROTECTIVE ORDER

From: Schmidt, Ann M. <m..schmidt@enron.com>
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To:
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Enron's India Unit Says Pleased With Supreme Court Ruling
Dow Jones International News, 08/06/01
INDIA: Indian top court rules in Enron's favour-companies.
Reuters English News Service, 08/06/01

Enron Wins Indian Court Decision Over Power Dispute Arbitration
Bloomberg, 08/06/01

INDIAN FM ADMITS MISTAKES OVER UNIT TRUST OF INDIA
Asia Pulse, 08/06/01
India: Uncertain fate of LNG carrier
Business Line (The Hindu), 08/06/01

Too Much Power? The utility industry's in a building boom. Why skeptics fear a bust.
Barron's, 08/06/01
Software companies face uphill battle in bid to shift from one-time sales fees to monthly subscriptions
Associated Press Newswires, 08/06/01

Enron's India Unit Says Pleased With Supreme Court Ruling

08/06/2001
Dow Jones International News
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NEW DELHI -(Dow Jones)- Dabhol Power Co. said Monday it was "extremely pleased" with the Indian Supreme Court's ruling that asked the Bombay High Court to decide on Maharashtra Electricity Regulatory Commission's jurisdiction in settling DPC's $48 million payment dispute with Maharashtra State Electricity Board.
DPC is a unit of U.S. energy major Enron Corp. (ENE).
"The favorable ruling gives further support to DPC's faith in the Indian legal system. The Supreme Court took note of DPC's argument that members of the MERC had previously published articles and position papers against the Dabhol project," said a DPC statement.
"Although the court didn't rule on the question of MERC's bias, the court recognized the seriousness of potential bias and agreed that the matter could

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be heard before the Bombay High Court and not MERC," the statement added.
Enron Corp. holds a controlling 65% stake in Dabhol Power Co., which operates a 740-megawatt power plant in the western Indian state of Maharashtra.
DPC is embroiled in a long-standing dispute with its sole buyer MSEB over payments for electricity. MSEB stopped drawing power from DPC May 29, saying its tariffs were "unaffordable." DPC had earlier approached the Bombay High Court for redress of its grievances. It later appealed to the country's Supreme Court for justice.
Valued at $2.9 billion, the Dabhol project is the single largest foreign investment in India.
-By Himendra Kumar; Dow Jones Newswires; 91-11-461-9426; himendra.kumar@dowjones.com

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INDIA: Indian top court rules in Enron's favour-companies.

08/06/2001
Reuters English News Service
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BOMBAY, Aug 6 (Reuters) - India's highest court on Monday ruled in favour of U.S. energy giant Enron Corp's Dabhol Power Company (DPC) in its ongoing dispute with a local utility over high tariffs and payment defaults, the utility's head said.
The Supreme Court overturned a lower court's ruling in June, Maharashtra State Electricity Board chairman Vinay Bansal told Reuters.
"They have allowed Dabhol's petition and set aside the order of the Bombay high court," he said.
The Supreme Court has asked the high court to decide whether Dabhol can take the dispute to the International Court of Arbitration in London.
"The favourable ruling on the issue by the Supreme Court gives further support to DPC's historical faith in the Indian legal system," a Dabhol statement said.
The current round of litigation was sparked off when the Maharashtra Electricity Regulatory Commission said the power company's dispute with the state utility fell within its ambit and Dabhol could not proceed with the arbitration.
Dabhol then petitioned the high court, asking it to decide whether it could indeed take the dispute to London.
On June 26, the high court rejected Dabhol's petition, saying the provincial regulator was empowered to take that decision.
Dabhol then appealed to the Supreme Court.
BITTER BATTLE

Dabhol and the Board are locked in a bitter battle over a 2,184 MW power plant Enron's subsidiary is building in two phases on the western coast of India. At the centre of the dispute is the power purchase agreement, a contract that governs the terms of Dabhol's sale and the Board's purchase of electricity. Dabhol claims the utility has violated several clauses in this contract and wants the dispute to be resolved by the International Court of Arbitration. The Board cites its own clauses that it says Enron's unit has violated and insists the dispute be settled by the provincial regulator.
The row threatens nearly $3 billion of foreign investment, the largest the country has seen.

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Enron Wins Indian Court Decision Over Power Dispute Arbitration
2001-08-06 07:14 (New York)

Enron Wins Indian Court Decision Over Power Dispute Arbitration

Mumbai, Aug. 6 (Bloomberg) -- India's highest court blocked an attempt by the Maharashtra State Electricity Board to have a provincial regulator arbitrate its dispute with Enron Corp. over $64 million in unpaid power bills.

The New Delhi-based Supreme Court ruled that the seven-month old dispute must be settled through the Mumbai High Court and not the Maharashtra Electricity Regulatory Commission, which was set up in 1999 to regulate the power industry in the western Indian state.

The ruling is a victory for Enron, whose Dabhol Power Co. unit in May began proceedings to end the seven-year-old power supply contract with Maharashtra, its sole customer, because of the debt. The state's electricity board, in response, stopped buying Dabhol's power, saying it's too expensive, prompting the generator to halt production.

The ruling is ``favorable,'' said Enron in a statement.

Dabhol has argued that the board didn't have the right to cancel the contract, and the board referred the dispute to the Maharashtra Electricity Regulatory Commission.

Dabhol argued the regulator was created in 1999, after the power purchase contract was signed, and therefore didn't have the